



POLICE DEPARTMENT

November 12, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Eva Pena
Tax Registry 939199
42 Precinct
Disciplinary Case No. 84755/08

The above-named member of the Department appeared before me on September 22, 2010, charged with the following:

1. Said Police Officer Eva Pena, assigned to the 42 Precinct, while off-duty, on or about and between June 4, 2007 and June 11, 2007, at the 42nd Precinct, in Bronx County, did wrongfully utilize the Department computer on two (2) separate dates to make an inquiry unrelated to the official business of the Department of the City of New York, in that said Police Officer made an unauthorized background check of Mr. [REDACTED] on a Department computer.

P.G. 219-14, Page 1, Paragraph 2 -- PERFORMANCE ON DUTY PROHIBITED CONDUCT

2. Said Police Officer Eva Pena, assigned as indicated in Specification #1, while off-duty, on or about April 23, 2008, at a location known to this Department, in Bronx County, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said officer was present during an incident wherein said officer's mother approached the complainant in a criminal case where her brother, Mr. [REDACTED] was the defendant, and said officer's mother compensated the complainant for damage caused to her vehicle by Mr. [REDACTED] (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 -- PROHIBITED CONDUCT -- GENERAL REGULATIONS

3. Said Police Officer Eva Pena, while assigned as indicated in Specification #1, while off-duty, on or about and between January 2008 and January 2009, at the 42nd Precinct, in Bronx County, having changed said officer's residence, did fail and neglect to notify his Commanding Officer by submitting form Change of Name, Residence or Social Condition (PD 451-021), as required. (*As amended*)

P.G. 203-18, Page 1, Paragraph 5 -- RESIDENCY REQUIREMENTS

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The Department was represented by Beth T. Douglas, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through her counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent is a five-year member of the Department assigned to the 42 Precinct. She spent six months at the 44 Precinct and the other four-and-a-half years at the 42 Precinct. Respondent is full-duty, performs uniformed patrol and had made approximately 50 arrests in her career. Respondent testified that she has never been the subject of Charges and Specifications aside from this case and has at most received a Command Discipline with a warn and admonish punishment once in her career.

Respondent testified that she lived on [REDACTED] in [REDACTED] for 17 years. In 2008-2009, she moved into an apartment in her sister's three-family house on [REDACTED] in the [REDACTED] for approximately three months. She stated that her father became [REDACTED] and her mother asked her to move back home to help her with the care of her father. Respondent said that she moved back home to help her mother. Respondent explained that she changed her address at the precinct by noting it on her Force Card when she moved to the [REDACTED], but she never completed the paperwork

to notify Department headquarters of her change of address. She further explained that she spent two to three nights a week at her sister's house and the other nights in the week she spent at her parent's home. Respondent testified that she now knows whenever she changes her address, she has to not only notify her command, but also has to make a notification to One Police Plaza by completing the paperwork. Respondent stated that when she had a recent change of address, she contacted the administrative lieutenant at her command and changed her address on the Force Card at her command as well as completed the form which was forwarded to One Police Plaza.

On or about April 23, 2008 Respondent stated that her brother, [REDACTED] ([REDACTED]) resided at [REDACTED] in the [REDACTED]. Her mother called her and was hysterical. She explained that her brother was bleeding and was transported to the hospital. Respondent went to [REDACTED] Hospital where she spoke to her brother. He informed her that he was assaulted in front of his apartment by at least three other men who had machetes. He stated that he, along with the three men, were arrested and he did not understand why he was arrested if he was the one who was assaulted and hospitalized.

At some point, Respondent spoke with her mother, who informed Respondent that she was outside of [REDACTED]'s building with a woman who was trying to speak to her but the woman spoke English and she spoke Spanish and she needed Respondent to translate for her. Respondent went to her brother's residence and translated for her mother. The woman (later identified as [REDACTED]) said that ten to 15 guys assaulted her brother as he attempted to enter the building.¹ [REDACTED] explained that she was present and saw

¹ The woman was identified as the complainant in the criminal mischief case to be [REDACTED].

the incident unfold. During the course of the assault, her [REDACTED]'s car window was broken. [REDACTED] stated that all she wanted was to have her car window fixed.

Respondent and her mother left [REDACTED]. [REDACTED] called Respondent's mother back on her cell phone and informed her that it would cost \$50.00 - \$60.00 to repair her car window. Respondent said that her mother offered to pay [REDACTED] to fix her window. Respondent denied that at any point her mother offered to pay [REDACTED] so that [REDACTED] would not testify in a criminal matter against her brother. In fact, Respondent explained that at no point during the conversation did [REDACTED] say she filed a cross-complaint or was the complainant in the criminal matter against her brother. Respondent further explained that she did not know that the woman her mother was communicating with was a complainant/victim in the case pending against her brother. Respondent testified that she was not present when her brother was assaulted that same day. Respondent said that her brother's criminal case was later dismissed. The other men involved in the assault of her brother, however, received jail time.

In a separate matter, Respondent acknowledged that on two separate dates, June 4, 2007 and June 11, 2007 she wrongfully utilized a Department computer to make inquiries unrelated to the official business of the Department. Respondent testified that she is the only child of her parents who still lives at home. Her mother called her while she was at work and informed her that she received a letter that seemed to indicate that her brother [REDACTED]'s driver's license had been suspended. Her mother stated that the letter was in English and she could not understand it. Respondent stated that she used the Department computer and put in her brother's name and date of birth to determine if his license was suspended. She stated that she was unsure of what she was doing so she did it

again. Respondent stated that she learned her lesson that she should not commingle the running of someone's personal license plate information with her position as a police officer. She testified that she understood that she cannot mix her personal business with police business.

During cross-examination, Respondent stated that she spoke to her brother at the hospital and was left with the question that if her brother was assaulted, why was he under arrest. Respondent explained that she tried to gather some information about her brother's case. She went to the 46 Precinct. She initially spoke to a Police Officer Rodriguez. She denied speaking with the desk sergeant. She explained that she attempted to speak to the desk sergeant, but he informed her that he was busy at the desk and she would have to sit on the side for a while and wait until he had a moment to speak to her. Respondent said that she attempted to wait until the sergeant had time to speak to her, but she was concerned about her brother's condition in the hospital, so she left the station house before getting a chance to discuss the matter with the desk sergeant. She stated that she did not get clarity on the situation involving her brother and she still was unaware that the woman she spoke to and translated for on behalf of her mother was the complainant in the criminal case pending against her brother.

With respect to her allegedly running warrant checks on her brother, Respondent stated that she ran his name and date of birth only. She acknowledged that she ran her brother's information in the computer system for a personal purpose rather than for a work-related purpose.

Regarding the failure to submit a change of address form, Respondent acknowledged that she moved from [REDACTED] to the [REDACTED] for three months. She stated

that her main residence was [REDACTED] in [REDACTED] and the Department was already made aware of that address. She stated that since she informed her command of her move to the [REDACTED] she did not think she had to also notify headquarters of her move.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined, see *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

Respondent was appointed to the Department on July 11, 2005. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Respondent has pleaded Guilty to wrongfully utilizing a Department computer on two occasions in June 2007 to do unauthorized background checks of her brother. It must be noted that the background checks were not related to Respondent's brother's criminal case which occurred in April 2008.

Respondent also pleaded Guilty to conduct prejudicial to the good order, efficiency and discipline of the Department in that Respondent was present wherein her mother approached the complainant in a criminal case where her brother was the defendant and Respondent's mother compensated the complainant for damage caused to her vehicle by Respondent's brother. In this instance, Respondent testified that her brother had been assaulted. On the same date as the assault, Respondent's mother contacted her and informed her that there was a woman who wanted to talk to her, but she could not speak English to the woman as she only spoke Spanish. Respondent translated for her mother. Respondent testified credibly that the woman explained that she

witnessed the assault of her brother. Respondent did not know that the woman was the complainant in the criminal case pending against her brother. In other words, during the course of the conversation, the woman never stated that she filed a criminal complaint against her brother because when her brother was being assaulted, her car window was broken during his assault. The woman, [REDACTED], became the complainant in the criminal mischief complaint pending against Respondent's brother. Respondent testified credibly that she was not aware of this information when she spoke to [REDACTED].

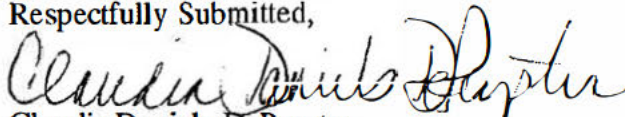
Although a cursory review of this Charge and Specification seems like the criminal offense of witness tampering, as the facts unfold, there is no criminality afoot in this instance. There is no *quid pro quo*, i.e., neither Respondent nor her mother said to [REDACTED] that if she agrees to accept the money, [REDACTED] will withdraw the criminal complaint. In fact, Respondent did not know the details of the criminal complaint. Respondent's mother simply offered to make restitution to [REDACTED] for the damage to her vehicle and that act, in and of itself, did not amount to illegality or impropriety. It must be noted that Respondent's brother's assault, his hospitalization, the conversation with [REDACTED] and the restitution all took place on the same date.

Respondent also pleaded Guilty to failing to submit a Change of Name, Residence or Social Condition form as required. In mitigating this charge, Respondent testified that she changed her address on her Force Record at her command from her parent's residence to her sister's house and did not realize that she also needed to submit an additional form to police headquarters.

Because Respondent has pleaded Guilty to all three charges, the sole issue before this Court is penalty. The Assistant Department Advocate has recommended a penalty of

the forfeiture of 30 vacation days. For the reasons stated above, it is recommended that Respondent forfeit 20 vacation days.

Respectfully Submitted,



Claudia Daniels-DePeyster

Assistant Deputy Commissioner - Trials

APPROVED

APR 25 2011



RAYMOND W. KELLY
POLICE COMMISSIONER

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER EVA PENA
TAX REGISTRY NO. 939199
DISCIPLINARY CASE NO. 84755/08

On February 13, 2009 Respondent was placed in Level II Discipline Monitoring based on her overall record.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials